

EXHIBIT "D"

ARTICLES OF INCORPORATION
OF
GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC.

In compliance with the laws of the State of Florida, the undersigned, all of whom of full age, have this day voluntarily associated themselves together for the purpose of forming a corporation not for profit, and do hereby certify:

ARTICLE I: NAME

The name of this proposed Association shall be:

GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC. (hereinafter referred to as "the Association").

ARTICLE II: PURPOSES AND OBJECTS

The purposes and objects of the Association shall be to provide for the acquisition, construction, management, maintenance and care of the GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC. (hereinafter referred to as "the Condominium"), a condominium regime, all of the Docks of which shall be used as boat dockage, to be established in accordance with the laws of the State of Florida upon the property, situate, lying and being in Monroe County, Florida, as more particularly described in Exhibit A attached hereto and made a part hereof, in accordance with the terms, provisions, conditions and authorizations in the Declaration of Condominium (hereinafter referred to as "the Declaration"), which will be recorded in the Public Records of Monroe County, Florida; and to own, operate, lease, sell, trade, and otherwise deal with such property, whether real or personal, as may be necessary or convenient for such acquisition, construction, management and care. The Association shall be conducted as a non-profit organization for the benefit of all its members, and no part of the net earnings of the Association shall inure (other than by acquiring, constructing or providing management, maintenance and care of the Condominium, and other than by a rebate of excess membership dues, fees or assessments) to the benefit of any private member or individual.

ARTICLE III: POWERS

A. The Association shall have all of the powers and privileges granted under the Florida Not-for-Profit Corporation Law and all of the powers and privileges which may be granted under any other applicable laws of the State of Florida, including the Condominium Act, reasonably necessary to implement and effectuate the purposes of the Association.

B. The Association shall have all of the powers reasonably necessary to implement and effectuate the purposes of the Association, including without limitation, the following:

1. To make and establish reasonable rules and regulations governing the use of the Docks and common elements in the Condominium as such terms are defined in the Declaration.
2. To levy and collect assessments against members of the Association to defray the common expenses of the Condominium as may be provided in the Declaration and in the By-Laws of this Association, including the right to levy and collect assessments for the purposes of acquiring, operating, leasing, managing and otherwise trading and dealing with such property, whether real or personal, including Docks in the Condominium, which may be necessary or convenient in the

operation and management of the Condominium and in accomplishing the purposes set forth in the Declaration.

3. To maintain, repair, replace, operate and manage the Condominium and the property comprising same, including the right to reconstruct improvements after casualty and to make further improvement of the Condominium property.
4. To contract for the management of the Condominium and to delegate the powers and duties of the Association except those which may be required by the Declaration to have approval of the Board of Administration (hereinafter referred to as "the Board") or membership of the Association.
5. To enforce the provisions of the Declaration, these Articles of Incorporation, the By-Laws and the Rules and Regulations as the same may be amended from time to time.
6. To acquire and enter into leases and agreements whereby the Association acquires leaseholds, memberships and interests in lands or facilities, including recreational facilities, whether or not contiguous to lands of the Condominium to provide enjoyment, recreation, or other use or benefit to all the Dock Owners, all as may be deemed by the Board to be in the best interests of the Association.
7. To execute, undertake and accomplish all of the rights, duties and obligations which may be granted to or imposed upon the Association pursuant to the Declaration.

ARTICLE IV: MEMBERSHIP

A. Record Owners. Every record Owner of a fee interest in any Dock subject to the Declaration shall be a member of the Association and shall be subject to assessment by the Association. (The foregoing shall not include holders of an interest merely as security for the performance of an obligation). The membership of any party shall be terminated automatically upon such party being divested of his fee ownership in any Dock, except that the membership of any party owning a fee interest in two or more Docks shall not be terminated so long as such party shall retain a fee interest in any Dock.

B. Interest in Association Funds and Assets. The interest of a member in the funds and assets of the Association cannot be assigned, hypothecated or transferred in any manner, except as an appurtenance to his Dock. Such funds and assets shall belong solely to the Association subject to the limitation that the same be expended, held or used for the purposes authorized in these Articles, the Declaration and the By-Laws.

C. Voting. On all matters on which the membership shall be entitled to vote, there shall be only one vote for each Dock in the Condominium, which vote may be cast by the Dock Owner(s) in such manner as provided in the By-Laws. Should any member own more than one Dock, such member shall be entitled to cast as many votes as he owns Docks.

Until the Declaration is recorded and Docks are conveyed to Dock Owners, the membership of the Association shall be comprised of the subscribers to these Articles, each of whom shall be entitled to cast one vote on all matters on which the membership shall be entitled to vote.

ARTICLE V: DURATION

The Association shall have perpetual existence.

ARTICLE VI: PRINCIPAL OFFICE

The initial principal office of the Association shall be located at the office of the Ocean Reef Club in Key Largo, Florida, but thereafter may be

located at such other suitable and convenient place as shall be permitted by law and designated by the Board.

ARTICLE VII: MANAGEMENT

The affairs of the Association shall be managed by the President with the assistance of the Vice President, Secretary and Treasurer and other officers, if any, subject to the direction of the Board. The Board, or the President with the approval of the Board, may employ a managing agent and/or other managerial and supervisory personnel or entities to administer or assist in the administration of the operation and management of the Condominium and the Association. Any such person or entity may be so employed without regard to whether such person or entity is a member of the Association or an Administrator or officer of the Association.

ARTICLE VIII: BOARD OF ADMINISTRATION

A. Number of Administrators. The number of Administrators on the first Board shall be three (3). The number on succeeding Boards shall be as provided from time to time in the By-Laws. The Administrators shall be elected by the members of the Association at their annual meeting as provided in the By-Laws. At least a majority of the Board shall be members of the Association or shall be authorized representatives, officers or employees of corporate members.

B. Representation. When Dock Owners other than Ocean Reef Club, Inc. (hereinafter referred to as "Developer") own fifteen percent (15%) or more of the Docks in the Condominium, such Dock Owners shall be entitled to elect not fewer than one-third (1/3) of the persons on the Board of Administration.

Such Dock Owners shall be entitled to elect not fewer than a majority of the Administrators:

1. Three (3) years after fifty percent (50%) of the Docks that will be operated ultimately by the Association have been conveyed to purchasers;
2. Three (3) months after ninety percent (90%) of the Docks that will be operated ultimately by the Association have been conveyed to purchasers;
3. When some of the Docks have been conveyed to purchasers and none of the others is being offered for sale by Developer in the ordinary course of business whichever occurs first.

Developer shall have the right to elect a majority of the Administrators until the occurrence of any of the above events. Developer shall be entitled to elect at least one (1) Administrator as long as Developer holds for sale in the ordinary course of business at least five percent (5%) of the Docks in the Condominium.

The right reserved herein to Developer to elect and maintain administrators may be assigned to and exercised by its successor(s) in interest.

C. First Board. The names and post office addresses of the first Board who, subject to the provisions of these Articles of Incorporation, the By-Laws, and the laws of the State of Florida, shall hold office for the first year of the Association's existence, or until their successors are elected and have qualified, are as follows:

NAME

ADDRESS

Charles Broeman

270 Ocean Reef Club

Key Largo, Florida 33037

William Turco

c/o Ocean Reef Club

Key Largo, Florida 33037

Richard L. Guinand

c/o Ocean Reef Club

Key Largo, Florida 33037

The undertakings and contracts authorized by the first Board shall be binding upon the Association in the same manner as though such undertakings and contracts had been authorized by the Board duly elected by the membership after the Declaration has been recorded, so long as such undertakings and contracts are within the scope of the powers and duties which may be exercised by the Board in accordance with all applicable Condominium documents.

ARTICLE IX: OFFICERS

The Board shall elect annually a President, Secretary and Treasurer, and as many Vice Presidents, Assistant Secretaries and Assistant Treasurers as the Board shall determine. The President shall be elected from among the membership of the Board and be an Administrator but no other officer need be a member or Administrator. The same person may hold two offices, except for the following combinations: (1) President and Vice President; (2) President and Secretary or Assistant Secretary.

The officers who shall serve until the first election under the Articles of Incorporation shall be the following:

<u>NAME</u>	<u>ADDRESS</u>	<u>OFFICE</u>
Charles Broeman	c/o Ocean Reef Club <u>Key Largo, Florida 33037</u>	President/ Treasurer
William Turco	c/o Ocean Reef Club <u>Key Largo, Florida 33037</u>	Vice President/ Secretary

ARTICLE X: SUBSCRIBERS

The subscriber to these Articles of Incorporation is as follows:

<u>NAME</u>	<u>ADDRESS</u>
Fred R. Kucker	100 Chopin Plaza, Suite 3000 Miami, Florida 33131

ARTICLE XI: BY-LAWS

The original By-Laws of the Association shall be adopted by the Board of Administrators designated herein. Thereafter, the By-Laws may be altered or rescinded only in such manner as the By-Laws may provide by the members.

ARTICLE XII: INDEMNIFICATION

To the extent permitted by the laws of the State of Florida every Administrator and every officer shall be indemnified by the Association against all expenses and liabilities, including counsel fees, reasonably incurred by or imposed upon him in connection with any proceeding to which he may be a party, or in which he may become involved, by reason of his being or having been an Administrator or officer, whether or not he is an Administrator or officer at the time such expenses are incurred, except where he is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties;

provided, however, that in the event of any claim for reimbursement or indemnification hereunder based upon a settlement by the Administrator or officer seeking such reimbursement or indemnification, the indemnification herein shall apply only if the Board approves such settlement and reimbursement as being in the best interests of the Association. The foregoing right of indemnification shall be in addition to all other rights to which such Administrator or officer may be entitled.

ARTICLE XIII: AMENDMENTS

A. Proposal; Notice of Meeting. Amendment(s) to these Articles of Incorporation may be proposed by the Board acting upon a majority vote or by the members of the Association owning two-thirds (2/3) of the Docks in the Condominium, whether by vote at a meeting or by instrument signed by them. Upon the proposal of any amendment(s) by the Board or members, such proposed amendment(s) shall be transmitted to the President (or other officer in the President's absence) who thereupon shall call a special meeting of the members for a date not sooner than twenty (20) days nor later than sixty (60) days from the receipt by him of the proposed amendment(s). The Secretary shall give each member written notice of such meeting, stating the time and place of the meeting and reciting the proposed amendment(s) in reasonably detailed form. Such notice shall be mailed or presented personally to each member not less than ten (10) nor more than thirty (30) days before the date set for the meeting. If mailed, such notice shall be deemed to be properly given when deposited in the United States mail, postage prepaid, addressed to the member at his post office address as it appears on the records of the Association. Any member may waive such notice in writing which waiver when filed in the records of the Association, whether before or after the meeting, shall be deemed equivalent to the receipt of such notice by such member.

B. Methods of Approval. At an amendment meeting, the affirmative vote of members owning not fewer than two-thirds (2/3) Docks shall be required for the approval of any proposed amendment.

A member may submit his written vote concerning any proposed amendment(s) in lieu of attending the meeting or in lieu of being represented by proxy, provided such written vote is delivered to the Secretary of the Association at or prior to such meeting.

In the event that the members owning the number of Docks in the Condominium necessary to pass any amendment(s) to these Articles of Incorporation shall execute an instrument amending these Articles of Incorporation, the same shall be and constitute, when duly registered in the Office of the Secretary of State, a valid amendment to these Articles of Incorporation, and it shall not be necessary for a meeting to be held.

C. Registration. Upon approval, such amendment(s) shall be transcribed and certified in such form as may be necessary to register the same in the Office of the Secretary of State. Upon such registration, a certified copy thereof shall be recorded in the Public Records of Monroe County, Florida, within ten (10) days from the date of registration.

D. Prohibition of Certain Amendments. Notwithstanding the foregoing provisions of this Article, no amendment to abridge, amend or alter the rights of the Association to contract with Developer as herein provided or the right of Developer to designate and select members of the Board may be adopted without the prior written consent of Developer.

ARTICLE XIV: REGISTERED AGENT

The name and street address of the first registered agent authorized to accept service of process within the State for the Association is Andrew Service Corp., 100 Chopin Plaza, Suite 3000, Miami, Florida 33131.

IN WITNESS WHEREOF, the subscribers have hereunto set their hands and seals this _____ day of _____, 1986.

Fred R. Kucker

STATE OF FLORIDA)
): ss
COUNTY OF DADE)

BE IT REMEMBERED that on this _____ day personally appeared before me Fred R. Kucker, the subscriber to the foregoing Articles of Incorporation, known to me personally to be such, and acknowledged the said Articles to be a free and voluntary act and deed, and that the facts therein stated are truly set forth.

WITNESS my hand and official seal at Miami, Florida, this _____ day of _____, 1986.

Notary Public, State of Florida at Large

My Commission expires:

ACKNOWLEDGEMENT:

Having been named to accept service of process for the above stated Association, at the place designated in these Articles, the undersigned hereby accepts to act in this capacity, and agrees to comply with the provisions of Chapter 617, Florida Statutes, relative to keeping open said office.

ANDREW SERVICE CORP.

Fred R. Kucker